

Sh. Suresh Chand vs Ms. Arti @ Bharti on 9 November, 2021

IN THE COURT OF SH. SANJEEV KUMAR MALHOTRA:
ADDITIONAL SESSIONS JUDGE-04; SHAHDARA:
KARKARDOOMA COURT: DELHI.

Criminal Appeal No. 2/2021
ID No. 5/2021
CNR No. DLSH01-000939-2021

Sh. Suresh Chand
S/o Late Sh. Kundan Lal
R/o V-290, Ambedkar Basti,
Ghonda, Delhi-110053.

.....Appellant

Vs.

Ms. Arti @ Bharti
W/o Sh. Babulal
R/o V-290, Ambedkar Basti,
Ghonda, Delhi-110053.

.....Respondent

Date of filing : 28.01.2021
Date of arguments : 16.10.2021
Date of order : 09.11.2021

JUDGMENT

1. This appeal is preferred by the appellant u/s. 29 of the Protection of Women from Domestic Violence Act, 2005 CA

No. 2/2021 Page 1 of 6 Suresh Chand vs. Ms. Arti @ Bharti (hereinafter referred to as DV Act) against the impugned order dated 22.12.2020 passed by Ms. Deepakshi Rana, Ld. MM (Mahila Court No.3), Shahdara, in CT No. 2510/20, whereby Ld. Trial Court as ad-interim measure directed the respondents not to disturb the possession of complainant/petitioner from the matrimonial home and also restrained them from selling the matrimonial home till the interim maintenance application is disposed off.

2. Arguments have been advanced by Mr. Kali Charan, Ld. Counsel for appellant as also by Mr. Ashok Nigam, Ld. Counsel for respondent. I have also perused the written submissions as filed on behalf of respondent.

3. Ld. Counsel for appellant argued that Ld. Trial Court passed the impugned order without service of notice of petition to the appellant and as such, no opportunity of being heard was given to appellant. It has been submitted that an eviction order dated 04.12.2020 has been passed against

the respondent and her husband by District Magistrate (North-East) under the Maintenance and Welfare of Parents and Senior Citizens (Amendment) Act 2007, but respondent concealed this fact from Ld. Trial Court with malicious intention to take benefit from the Court of law in collusion with her husband.

CA

No. 2/2021 Page 2 of 6 Suresh Chand vs. Ms. Arti @ Bharti

4. Per contra, Ld. Counsel for respondent argued that there is no illegality or impropriety in the impugned order. It has been submitted that the respondents had disclosed about the eviction petition in para 2 (r) of the application and as such, there is no concealment on part of respondents. Ld. Counsel for respondents further argued that the eviction order passed under Senior Citizens Act, 2007, cannot override the object and purpose of Protection of Women from Domestic Violence, Act 2005 and drew my attention in respect of a judgment passed by Hon'ble Apex Court in Civil Appeal no. 3822 of 2020 titled as Smt. S. Vanitha vs. The Deputy Commissioner, Bengaluru Urban District & Ors.

5. The impugned order has been challenged inter alia on the grounds that the appellant has not received notice/summon of the petition from Ld. Trial Court till date and stay order/impugned order is passed without providing an opportunity to hear the appellant; that the respondent concealed the eviction order dated 04.12.2020 passed by District Magistrate, North-East, Delhi; Ld. Trial Court did not comply the rule of judicial discipline and propriety and without hearing the appellant, passed the impugned order; that appellant is exclusive owner of the property in question which is a self acquired property and not ancestral property.

CA

No. 2/2021 Page 3 of 6 Suresh Chand vs. Ms. Arti @ Bharti

6. Brief facts of case are that marriage of respondent /complainant was solemnized with son of appellant on 14.04.2011 at Delhi according to Hindu rites and ceremonies. It is alleged that respondent/complainant was harassed by appellant, who was compelled to bring Rs. 50,000/- from her parents as they were not satisfied with the gifts given on chuchak. Apart from other relief, respondent/complainant in her application u/s 12 of Domestic Violence Act, 2005 has prayed for residence order u/s 19 of the Act to restrain the respondents from dispossession or in any other manner disturbing the possession of petitioner in her matrimonial home and also from alienating or disposing off the shared household.

7. As per DIR filed by Protection Officer before Ld. Trial Court, all the respondents shared same household with petitioner/complainant and specific allegation of domestic violence have been imputed against them. It is also admitted by appellant, as mentioned in para no.3 of the appeal that respondent is residing in same house i.e. V-290, Ambedkar Basti, Ghonda, Delhi-53. The main pleas of the appellant is that no notice of petition was served upon appellant before passing the impugned order and that eviction order dated 04.12.2020 passed by District Magistrate, North East,

CA

No. 2/2021 Page 4 of 6 Suresh Chand vs. Ms. Arti @ Bharti Delhi under Parents and Senior Citizens (Amendment) Act, 2007 was concealed from Ld. Trial Court.

8. Hon'ble Supreme Court in Smt. S. Vanitha's case (supra) held as under: □The law protecting the interest of senior citizens is intended to ensure that they are not left destitute, or at the mercy of their children or relatives. Equally, the purpose of PWDV Act 2005 cannot be ignored by a sleight of statutory interpretation. Both sets of legislations have to be harmoniously construed. Hence, the right of a woman to secure a residence order in respect of a shared household cannot be defeated by the simple expedient of securing an order of eviction by adopting the summary procedure under the Senior Citizens Act, 2007.

9. Perusal of impugned order shows that notice of the petition was served upon respondent no. 1 i.e. husband and after considering the Domestic Incident Report, Ld. Trial Court granted ad□interim protection to the petitioner/complainant from dispossessing out of the matrimonial home till i n t e r i m m a i n t e n a n c e CA

No. 2/2021 Page 5 of 6 Suresh Chand vs. Ms. Arti @ Bharti application is disposed off. As the appellant has already admitted that petitioner/complainant is residing in matrimonial home and the interim application is still pending, appellant shall have an opportunity to make submission in support of his contention before Ld. Trial Court. As far as order passed by District Magistrate, North East, Delhi under Parents and Senior Citizens (Amendment), Act 2007, suffice it to say that as held by Hon'ble Apex Court in Smt. S. Vanitha's case (supra), the said order shall not defeat the right of petitioner/complainant to avail her rights to secure a residence order under the Domestic Violence Act, 2005. After considering the submissions of the parties and material placed on record, I do not find any illegality or irregularity in the impugned order passed by Ld. Trial Court. The appeal is dismissed being devoid of any merit. A copy of this order be sent to Ld. Trial Court. Appeal file be consigned to record room.

	SANJEEV	MALHOTRA
	KUMAR	Location: Shahdara district, Karkardooma Courts, Delhi
	MALHOTRA	Date: 2021.11.09 14:24:50 +0530
Announced in the open court		
on 09.11.2021	(Sanjeev Kumar Malhotra) ASJ-04/Shahdara/KKD Delhi.	

No. 2/2021 Page 6 of 6 Suresh Chand vs. Ms. Arti @ Bharti